

****November 13, 2023****

****Fine for Violation of Article 32 of the GDPR****

The National Supervisory Authority has completed, in October 2023, an investigation into the operator Rompetrol Downstream SRL and found a violation of the provisions of Article 32 paragraph (4) in conjunction with Article 32 paragraph (1) letter b) and Article 32 paragraph (2) of Regulation (EU) 2016/679.

As such, the operator was sanctioned with an administrative fine in the amount of 546,073.00 lei (equivalent to 110,000 euros).

The investigation was initiated following the operator's transmission of several notifications of personal data security breaches during the period from July 20, 2021, to February 3, 2022, in accordance with Article 33 of Regulation (EU) 2016/679.

During the investigation, it was found that internal access was gained and the data of several clients from the software program owned by the company was repeatedly used without authorization, and the personal data of certain clients was illegally disclosed for the purpose of obtaining loans from non-bank financial institutions in their names.

As a result of the incident, personal data of several data subjects was unauthorizedly disclosed, including data from the identity card (such as: name, surname, series and number of the identity card, personal identification number, address, place of birth, photo) and data from the salary certificate (such as: name and surname of the employee, date, signature, income earned, length of service).

The National Supervisory Authority found that Rompetrol Downstream SRL did not take measures to ensure that any natural person acting under the authority of the operator and having access to personal data processes it only at its request and did not implement appropriate technical and organizational measures to ensure a level of security corresponding to the risk of processing.

****Legal and Communication Department****

****N.S.A.P.D.C.P****